MICHAELA G. DAVIES (CA Bar No. 332128)
ROBISON, SHARP, SULLIVAN & BRUST
71 Washington Street
Reno, Nevada 89503
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Attorneys for Plaintiff Stephen Russell

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
03/23/2022
Clerk of the Court
BY: ERNALYN BURA
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNLIMITED JURISDICTION

STEPHEN RUSSELL, an individual

Plaintiff,

v.

STEPHEN WALSH, an individual; MAURA WALSH, an individual; TARA WALSH, an individual,

Defendants.

CASE NO. CGC-20-588105

DECLARATION OF MICHAELA G. DAVIES IN RESPONSE TO ORDER TO SHOW CAUSE

Department: 610
Hearing Date: April 12, 2022
Time: 10:30 a.m.

Action Filed: December 2, 2020
Trial Date: None set.

Public copy: the child's legal name is shown as E.V.; private street addresses, personal phone numbers and personal email addresses are removed. Otherwise unchanged.

DECLARATION OF MICHAELA G. DAVIES

I, Michaela G. Davies, declare as follows:

1. The following facts are within my personal knowledge and, if called as a witness herein, I can and will competently testify thereto.

2. I am an attorney duly licensed to practice law before all courts of the State of California.

3. Plaintiff Stephen Russell ("Plaintiff") recently retained my law firm, Robison, Sharp, Sullivan & Brust, to serve as his counsel in this action.

4. This declaration is submitted in response to the Court's Continued Order to Show Cause, filed December 27, 2021, wherein the Court ordered Plaintiff to appear on April 12, 2022, at 10:30 a.m. to show cause why this action should not be dismissed or why sanctions should not be imposed for failure to file proof of service on defendant(s) and obtain answer(s), or enter default(s) as to the First Amended Complaint.

5. As described more fully below, Plaintiff respectfully requests that the Court not impose any sanctions, as good cause and substantial justification exist for the delay identified in the Continued Order to Show Cause.

6. Plaintiff filed the First Amended Complaint on December 28, 2020, wherein Plaintiff asserted the following eight causes of action against Defendants Stephen Walsh ("Stephen"), Maura Walsh ("Maura"), and Tara Walsh ("Tara") (collectively, "Defendants"): (1) violation of Cal. Civ. Code § 49(a) for abduction of child from parent; (2) violation of Cal. Civ. Code § 1708 for intentional interference with parental rights; (3) violation of Cal. Civ. Code § 1709 for fraud; (4) conspiracy; (5) aiding and abetting; (6) intentional infliction of emotional distress; (7) negligent infliction of emotional distress; and (8) negligence. These causes of action are predicated on allegations relating to Defendants' unlawful abduction of Plaintiff's daughter, [redacted] ("E.V.") from her home in California to New York, in violation of a court restraining order. *See* FAC at ¶ 1. Tara is [redacted] mother, and Stephen and Maura are Tara's parents, and are also husband and wife. *Id.* at ¶¶ 6-7.

7. On January 15, 2021, Plaintiff caused the Westchester County Sherriff to attempt to effectuate service of the Summons and Complaint, First Amended Complaint, and Notice of Case

Management Conference on Defendants, who all reside at [redacted], Chappaqua, New York 10514 (the "Family Home").

8. While the Sheriff successfully served Stephen at the Family Home, Stephen stated that both Maura and Tara no longer lived at the Family Home. Relying on Stephen's representation, the Sheriff did not effectuate service as to Maura or Tara. Attached hereto as **Exhibit A** is a true and correct copy of the Sheriff's Certificates.

9. Stephen's representation that Maura and Tara did not reside at the Family Home is demonstrably false.

10. For example, in *Russell v. Maman, et al.* (Case No. 3:18-CV-06691-RS(SK)), in the United States District Court for the Northern District of California ("Federal Action"), the defendants in that action sought to take the deposition of Tara, a non-party to that case, and caused a subpoena and notice of deposition to be served on Tara at the Family Home. In the Affidavit of Service filed in the Federal Action, a true and correct copy of which is attached hereto as **Exhibit B**, the affiant set forth:

> On February 6th 2021, I served Subpoena and Notice of Deposition on Tara Walsh by personal service to Stephen Walsh at [redacted] Chappaqua NY 10514. The residence addressed [redacted] has a gated entrance which opened automatically. The residence sits at the end of a long driveway. I approached the side door of the residence which had an open door and a closed glass storm door. On the inside of the storm door, was a child of approximately 2 years of age, who was later identified from open sourced social media as Tara Walsh's daughter. A slim figured woman with blonde hair, later identified as Tara Walsh, came forward, looked at me, and took the child away. The lights inside went out and there was no answer from the door bell. I was then approached by a gentleman who had just drove onto the property. The Gentleman was of approximately 60 years of age. I informed him that I had a subpoena for Tara Walsh. The man said that Tara is often visited for service of Subpoenas and is therefore leary [sic] of the same. This gentleman, later identified as Mr. Stephen Walsh, Tara's Father, was quite pleasant and stated "I will accept it" (the subpoena). He was then served.

11. As evidenced by the Affidavit of Service, just three weeks after Stephen falsely advised the Sheriff that Tara and Maura no longer reside at the Family Home, Tara not only attempted to evade service of a subpoena in the Federal Action, but Stephen confirmed that Tara is "leery" of subpoenas before agreeing to accept service of the same.

12. Relatedly, as recently as March 9, 2022, Tara filed a Proof of Service in a separate case in this Court, *Russell v. Walsh* (Case No. CGC-18-570137) ("State Action"), a true and correct copy of which is attached hereto as **Exhibit C**, wherein the Family Home is listed as her address, and Maura, as the declarant on the Proof of Service, likewise identifies the Family Home as her address.

13. On March 3, 2022, the Court in the State Action served Tara with a Judgment on Jury Verdict at the Family Home, which is Tara's address of record in that matter. A true and correct copy of the Court's Certificate of Service is attached hereto as **Exhibit D.**

14. Furthermore, the Reporter's Transcript of Proceedings on February 16, 2022, in the State Action reflects that Tara gave her appearance as residing at the Family Home. A true and correct copy of the first two pages of that trial transcript is attached hereto as **Exhibit E.**

15. Furthermore, on April 23, 2021, Maura gave deposition testimony as a non-party witness in connection with the State Action. A true and correct excerpt of that deposition transcript is attached hereto as **Exhibit F.** Therein, Maura testified under oath that her address at that time was the Family Home. *See* Ex. F at 8:5-14.

16. Therefore, the Sherriff correctly sought to serve Tara and Maura at the Family Home in this matter, but was misled by Stephen's false representations.

17. After being served in this matter, Stephen filed a Motion to Quash Service of Summons on April 20, 2021, which was supported by the declarations of Stephen and Tara. On May 21, 2021, the Court granted the Motion to Quash, such that Stephen is no longer a party to this action.

18. Therefore, not only does Tara have knowledge of this matter as evidenced by the fact that she has submitted a filing in this action, but in her Defendant Declaration in Support of Motion for Judgment Notwithstanding the Verdict filed March 21, 2022, in the State Action, a true and correct copy of which is attached hereto as **Exhibit G**, she acknowledges the existence of this lawsuit. *See* Ex. G at 2:25-27 (explaining that Plaintiff filed "a separate lawsuit suing my parents and I in San Francisco").

19. Accordingly, while Plaintiff concedes that Tara and Maura have not been properly served within the meaning of Cal. Civ. Proc. Code § 415.20(b) at this time, it cannot be reasonably disputed

that Tara and Maura have intentionally and improperly evaded service, and that Tara and Maura have actual notice of this action.

20. After this Court granted Stephen's Motion to Quash, Plaintiff's former counsel withdrew as Plaintiff's counsel of record, *see* Order Granting Attorney's Motion to be Relieved as Counsel filed September 27, 2021, and Plaintiff has since been unrepresented in this matter until he engaged me last week to represent him in this action.

21. Given Tara's and Maura's history of evading service at the Family Home, and that Plaintiff sought to effectuate service within the 60-day time period as set forth in Rule 3.110(b) of the Cal. Rules of Court, Plaintiff respectfully requests that the Court not impose any sanctions for the delay in serving Tara and Maura, as the delay in serving Tara and Maura was the result of good cause and substantial justification; to wit, Stephen's false representations to the Sheriff that neither Tara nor Maura reside at the Family Home.

22. Furthermore, as permitted by Cal. Civ. Proc. Code § 415.40, Plaintiff caused, through undersigned counsel, on March 23, 2022, the following documents to be sent to Tara and Maura at the Family Home by certified mail, return-receipt-requested: (1) Complaint and Summons; (2) First Amended Complaint; (3) Continued Order to Show Cause; (4) this Declaration in Response to the Order to Show Cause; and (5) Substitution of Attorney. *See* Cal. Civ. Proc. Code § 415.40 (providing that a person residing outside of California may be served "by sending a copy of the summons and of the complaint to the person to be served by first-class mail, postage prepaid, requiring a return receipt[,]" and that "[s]ervice of a summons by this form of mail is deemed complete on the 10th day after such mailing").

23. Should Plaintiff be successful in his efforts to serve Tara and Maura prior to the date of the Order to Show Cause hearing, I will supplement this Declaration and advise the Court accordingly.

24. For the reasons set forth herein, Plaintiff respectfully requests that this Court discharge the Order to Show Cause and impose no sanctions.

25. Plaintiff further requests that this Court grant Plaintiff an extension to serve Tara and Maura and to file the corresponding proofs of service up to and including May 31, 2022. As explained

herein, such extension is supported by good cause given the justification for the delay in serving Maura and Tara; to wit, their practice and history of evading service of process.

26. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 23rd day of March, 2022, in Reno, Nevada.

MICHAELA G. DAVIES

EXHIBIT A

EXHIBIT A

WESTCHESTER COUNTY
DEPARTMENT OF PUBLIC SAFETY
SHERIFF'S CIVIL UNIT
THOMAS A. GLEASON
COMMISSIONER - SHERIFF

110 DR MARTIN LUTHER KING JR BLVD – ROOM L217 – WHITE PLAINS – NEW YORK – 10601

LAW OFFICES OF HOOK & HOOK
430 EAST OAKVIEW DRIVE
SUITE 101
WAYNESBURG, PA 15370

1/15/2021
ATTORNEY FILE:
SHERIFF FILE: 21000014

RE: STEPHEN G RUSSELL v. STEPHEN WALSH, MAURA WALSH, TARA WALSH

Process returned herewith (for reason checked below)

- [XXXX] Subject moved. Left no forwarding address
- [ ] We had insufficient time for service. Please re-date and return.
- [ ] Not known at address given
- [ ] No such number or street address
- [ ] No longer employed at given location
- [ ] Has mail and telephone privileges only at address given
- [ ] Reported out-of-town
- [ ] Vacant at address
- [ ] Please furnish us with better residence / business address
- [ ] Not deliverable – address is a P.O. Box
- [ ] Numerous attempts made at service. We were unable to make contact.
- [ ] Out of business
- [ ] Different business at location
- [ ] Returned by request
- [ ] Not listed in Building Directory – No apartment given.
- [ ] Evading Service
- [ ] Unable to gain entry at business or residence address
- [ ] Employer does not allow service or process upon employees
- [ ] No accounts in name given.
- [ ] Account balance is below minimum required for levy/Funds are exempt from levy.
- [ ] Account balance is zero or overdrawn.
- [ ] Account in multiple names - Turnover order needed.
- [ ] No reply to demand made on
- [ ] Execution expired – no leviable assets
- [ ] Judgment unsatisfied
- [ ] Case Closed
- [ ] See Remarks

Remarks: Stephen Walsh was served, however he stated the both Maura and Tara Walsh no longer lived at the given address. Walsh also stated he would not provide me with their current address.

Sincerely,
Police Officer: Christopher Barnett

SHERIFF'S CERTIFICATE OF SERVICE (C.P.L.R. 306)

SUPERIOR COURT
STATE OF NEW YORK
COUNTY OF SAN FRANCISCO **INDEX: CGC-20-588105**

STEPHEN G RUSSELL Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH Defendant/Respondent

I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that on 1/14/2021 at 6:54 PM service was effected of the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE in the above entitled action or proceeding by my undersigned Police Officer CHRISTOPHER BARNETT, upon STEPHEN WALSH the person named therein as defendant in said action or proceeding at [redacted] CHAPPAQUA, NY 10514 .

Defendant Description:

Approximate Age: 50/55	Sex: MALE
Approximate Weight: 175	Height: 5' 10"
Color of Skin: WHITE	Hair: GREY

I asked STEPHEN WALSH if he is a member of the military and he responded, "No."

Date: Friday, January 15, 2021

Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014

Thomas A. Gleason
Commissioner-Sheriff
Westchester County

SHERIFF'S CERTIFICATE OF ATTEMPTED SERVICE

SUPERIOR COURT
STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO **INDEX: CGC-20-588105**

STEPHEN G RUSSELL Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH Defendant/Respondent

I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that service in the above entitled action or proceeding was attempted by my undersigned Police Officer CHRISTOPHER BARNETT. The deponent personally attempted to serve, with due diligence, the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE on a number of occasions but has been unsuccessful. The last attempt was made on 1/14/2021 at 6:54 PM at [redacted] CHAPPAQUA, NY 10514 . Additional attempts are documented below.

Service attempts:
Date: 1/14/2021 @ 6:54 PM - [redacted] CHAPPAQUA, NY 10514

The deponent was unable to serve MAURA WALSH for the following reasons: She no longer lives at the given address

Date: 1/15/2021

Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014

Thomas A. Gleason
Commissioner-Sheriff
Westchester County

SHERIFF'S CERTIFICATE OF ATTEMPTED SERVICE

SUPERIOR COURT
STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO **INDEX: CGC-20-588105**

STEPHEN G RUSSELL Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH Defendant/Respondent

I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that service in the above entitled action or proceeding was attempted by my undersigned Police Officer CHRISTOPHER BARNETT. The deponent personally attempted to serve, with due diligence, the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE on a number of occasions but has been unsuccessful. The last attempt was made on 1/14/2021 at 6:54 PM at [redacted] CHAPPAQUA, NY 10514 . Additional attempts are documented below.

Service attempts:
Date: 1/14/2021 @ 6:54 PM - [redacted] CHAPPAQUA, NY 10514

The deponent was unable to serve TARA WALSH for the following reasons: She no longer lives at the given address

Date: 1/15/2021

Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014

Thomas A. Gleason
Commissioner-Sheriff
Westchester County

EXHIBIT B

EXHIBIT B

Robert A. Hufnagel, Esq. SBN: 210280
RESNICK & LOUIS, P.C.
3350 Shelby Avenue, Suite 200
Ontario, CA 91764
Telephone: 909.458.0110
Facsimile: 909.281.3510
Email: rhufnagel@rlattorneys.com

Stephen Russell,

Plaintiff,

v.

NIR MAMAN, an individual; CT707 ISRAELI KRAV SYSTEMS, INC., an Ontario corporation; GEORGE AKKELQUIST, an individual; DFW METROPLEX TRAINING ACADEMY, a Texas entity form unknown; RYAN MICHELETTI, an individual; LEGION INDUSTRIES, INC., a California entity form unknown; and DOES 4 Through 20, Inclusive;

Defendants,

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

CASE NO.: 3:18-CV-06691-RS (SK)

AFFIDAVIT OF SERVICE

State of New Jersey)
) SS
County of Bergen)

Alexander Saavedra, being duly sworn, deposes and says:

1. I am over the age of 18, and I am a licensed private detective in the State of New Jersey, NJ License No. 8710, 259 Union Street, Hackensack, NJ 07601, Phone : 201-646-1715.
2. I am not related to any of the parties by blood or marriage.
3. On February 6th 2021, I served Subpoena and Notice of Depostion on Tara Walsh by personal service to Stephen Walsh at [redacted], Chappaqua NY 10514. The residence addressed [redacted] has a gated entrance which opened automatically. The residence sits at the end of a long driveway. I approached the side door of the residence which had an open door and a closed glass storm door. On the inside of the storm door, was a child of approximately 2 years of age, who was later identfified from open sourced social media as Tara Walsh's daughter. A slim figured woman with blonde hair, later identified as Tara Walsh, came forward, looked at me, and took the child away. The lights inside went out there was no answer from the door bell. I was then apprached by a gentleman who had just drove onto the property. The Gentleman was of approximately 60 years of age. I informed him that I had a subpoena for Tara Walsh.

The man said that Tara is often visited for service of Subpoenas and is therefore leary of same. This gentleman, later identified as Mr. Stephen Walsh, Tara's Father, was quite pleasant and stated " I will accept it" (the subpoena). He was then served.

On this 9th day of February 2021, Alexander Saavedra appeared before me

Notary Public

Alexander Saavedra

Daniel J Winters
NOTARY PUBLIC
State of New Jersey
My Commission Expires April 4, 2024



EXHIBIT C

EXHIBIT C

TARA WALSH
SELF REPRESENTED PARTY
[redacted]
Chappaqua, NY 10514
Telephone: [redacted]

Defendant TARA WALSH

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
03/09/2022
Clerk of the Court
BY: ERNALYN BURA
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an individual, Plaintiff, v. TARA WALSH, an individual; and DOES 1-20, Defendants.	Case No. CGC-18-570137 **PROOF OF SERVICE**

PROOF OF SERVICE

I, the undersigned, declare as follows:

I am resident of Chappaqua, State of New York. I am over the age of eighteen (18) and am not a party to this action. My business address is [redacted], Chappaqua, NY 10514.

On the date set forth below, I served the document(s) entitled:

on the party in pro per in this action as follows:

DEFENDANT'S NOTICE OF INTENTION TO MOVE FOR A NEW TRIAL

BRIAN D. WALLER (admitted pro hac vice), PECKER & ABRAMSON, P.C.

1325 Avenue of the Americas, 10th Floor, New York, NY 10019

Phone: 212-382-0909 Email: bwaller@pecklaw.com

X [BY STANDARD POSTAL DELIVERY] I placed each in an envelope or package designated byUSPS with delivery fees paid or provided for, addressed to the person listed above and delivered to the facility regularly maintained by USPS pursuant to Code of Civil Procedure section 1013, subdivision (c).

X [BY ELECTRONIC TRANSMISSION] I transmitted a copy of what was sent by Federal Express to email address bwaller@hooklaw.com listed on the Notice of Substitution of Counsel Judicial Council form served on me pursuant to Cal.Rules of Court, Rule 2.251, subdivision (a).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATED: March 9, 2021

Maura Walsh

EXHIBIT D

EXHIBIT D

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

STEPHEN RUSSELL, an individual Plaintiff, vs. TARA WALSH, an individual; and DOES 1-20, Defendants.	Case Number: CGC-18-570137 **CERTIFICATE OF SERVICE BY MAIL AND BY EMAIL** (CCP 1013a (4))

I, Kimberly M. Septien, a Deputy Clerk of the Superior Court of the County of San Francisco, certify that I am not a party to the within action.

On March 4, 2022, I served the attached **JUDGEMENT ON JURY VERDICT** filed on March 3, 2022, by placing a copy thereof in a sealed envelope, addressed as follows:

BRIAN D. WALLER, ESQ.
Peckar & Abramson, P.C.
1325 Avenue of the Americas, 10th Floor
New York, NY 10019

TARA WALSH
[redacted]
Chappaqua, NY 10514

and, I then placed the sealed envelopes in the outgoing mail at 400 McAllister Street, San Francisco, CA. 94102 on the date indicated above for collection, attachment of required prepaid postage, and mailing on that date following standard court practices. I also emailed the document on March 3, 2022, to the following:

a. bwaller@pecklaw.com

b. [redacted]

Dated: March 3, 2022

T. MICHAEL YUEN, Clerk

By: _____
Kimberly M. Septien, Deputy Clerk

EXHIBIT E

EXHIBIT E

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN THE CITY AND COUNTY OF SAN FRANCISCO

BEFORE THE HONORABLE GARRETT L. WONG, JUDGE

DEPARTMENT 504

---OOO---

STEPHEN RUSSELL, Plaintiff, vs. TARA WALSH, et al., Defendant	CASE NO. CGC-18-570137

REPORTER'S TRANSCRIPT OF PROCEEDINGS

Wednesday, February 16, 2022

Reported by Angie Diner, RMR, CRR, CSR 9581

A P P E A R A N C E S:

FOR Plaintiff Stephen Russell:

PECKAR & ABRAMSON, P.C.
BY: BRIAN WALLER, ATTORNEY AT LAW
1325 Avenue of Americas, 10th Floor
New York, New York 10019
212.382.0909
Bwaller@pecklaw.com

FOR Defendant In Pro Per:

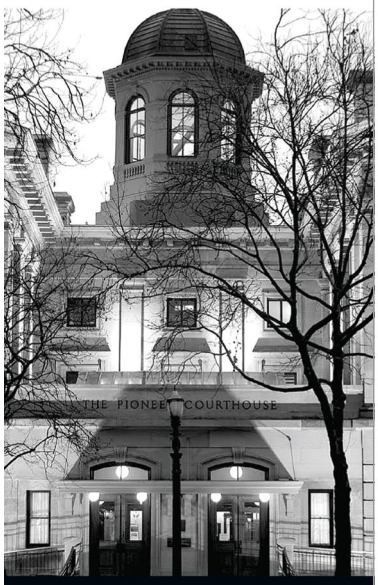
TARA K. WALSH
[redacted]
Chappaqua, New York 10514
[redacted]

EXHIBIT F

EXHIBIT F

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SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an individual

Plaintiff,

vs. Case No. CGC-18-570137

TARA WALSH, an individual; and DOES 1-20,

Defendants.

TARA WALSH, an individual

Cross-Complainant,

vs.

STEPHEN RUSSELL, an individual; and DOES 1-10,

Cross-Defendants.

REMOTE VIDEO DEPOSITION BY VIDEOCONFERENCE OF

MAURA WALSH

TAKEN ON
FRIDAY, APRIL 23, 2021
4:18 P.M.

[redacted]
CHAPPAQUA, NEW YORK 10514

APPEARANCES

Appearing on behalf of the Plaintiff:

JOY LLAGUNO, ESQUIRE BY VIDEOCONFERENCE

Hook and Hook, PLLC

430 East Oakview Drive, Suite 101

Waynesburg, PA 15370

(818) 970-6844

(724) 802-7959 (Fax)

jllaguno@hooklaw.com

Appearing on behalf of the Deponent:

FRANK MOORE, ESQUIRE BY VIDEOCONFERENCE

Frank S. Moore Law Offices

235 Montgomery Street, Suite 440

San Francisco, CA 94101

(415) 292-6091

(415) 292-6694 (Fax)

Fsmoore@pacbell.net

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REMOTE VIDEO DEPOSITION BY VIDEOCONFERENCE OF

MAURA WALSH

TAKEN ON

FRIDAY, APRIL 23, 2021

4:18 P.M.

THE VIDEOGRAPHER: We are on the record. The time is 4:18 p.m. This is the beginning of the deposition of Maura Walsh. The case caption is Russell versus Walsh. Will counsel please introduce yourselves and state who you represent?

MS. LLAGUNO: Good afternoon. My name is Joy Llaguno and I represent plaintiff, Stephen Russell. I'm with the law firm, Hook and Hook.

MR. MOORE: And this is Frank Moore with the Law Offices of Frank S. Moore, representing Maura Walsh for her deposition only.

THE VIDEOGRAPHER: Our court reporter will now swear in the witness.

THE REPORTER: Thank you, Vincent. Sorry for the background noise.

But, first, before we do that, I would like all attorneys present to stipulate that the testimony will be captured remotely by a professional digital reporter and that all present

agree to this method of preserving today's record. The testimony will be transcribed and certified.

Ms. Llaguno, do you agree to move forward?

MS. LLAGUNO: Yes, I do.

THE REPORTER: Okay. And, Mr. Moore, do you also agree to move forward?

MR. MOORE: Yes.

THE REPORTER: All right. Thank you very much.

Ms. Walsh, will you please raise your right hand? Thank you.

Do you solemnly affirm under penalty of perjury that you are Maura Walsh and that the testimony you're about to give will be the truth, the whole truth and nothing but the truth?

THE DEPONENT: Yes.

THE REPORTER: Okay. Thank you very much.

Counsel, you may begin.

MS. LLAGUNO: Thank you.

EXAMINATION

BY MS. LLAGUNO:

Q. Good afternoon, Ms. Walsh. Thank you for being here today. I really appreciate you taking the time out of your day to appear for this deposition. Can you please state your full name for

the record?

A. Maura Walsh.

Q. And can you please spell that?

A. M-a-u-r-a, W-a-l-s-h.

Q. And what is your current address?

A. [redacted] in Chappaqua.

Q. And is that in the State of New York; correct?

A. Correct.

Q. And where are you taking this deposition?

A. In my home.

Q. And it's at that same address you just mentioned; is that accurate?

A. Correct. Mm-hmm.

Q. Is anyone in the room with you?

A. No.

Q. What device are you using?

A. A computer.

Q. Are there any other programs open on the computer?

A. No.

Q. Do you have any documents in front of you?

A. No.

Q. Is your cell phone in front of you?

A. No.

EXHIBIT G

EXHIBIT G

TARA WALSH
SELF REPRESENTED PARTY
[redacted]
ACP 4590 , P.O. Box 1110
Albany, N.Y. 12201-1110 Telephone: [redacted]

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
03/21/2022
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

Defendant in Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an individual, Plaintiff, v. TARA WALSH Defendant	Case No. CGC-18-570137 **DEFENDANT DECLARATION IN SUPPORT OF MOTION FOR JUDGEMENT NOTWITHSTANDING THE VERDICT** Judge: Hon, Garret Wong Department: 504 Trial Date: February 14, 2022 Time: 9:30 AM Action Filed: September 26, 2018

DECLARATION OF TARA WALSH

I, TARA WALSH, am the named defendant in the above-referenced matter. I have personal knowledge of each fact stated in this declaration.

1. Before trial, Plaintiff's counsel told this court they had evidence that I "drugged" Plaintiff that they did not present at trial. This evidence was significant, included alleged texts to friends and family I "drugged" Plaintiff. At a hearing before this court, Plaintiff's counsel stated "There were previous

2. I do not believe that a clear case was presented to the jury. During deliberations, the jury asked "how should we define "touch" in regards to this case. Is it the ingestion of the Seroquel". If they did believe the "touch" was Plaintiff ingesting Seroquel, it is extremely relevant that he took it willingly for years. Them not knowing this information significantly hindered my defense.(See **EXHIBIT 2**).
3. I have had full-stay away Orders of Protection against Plaintiff for almost 4 years that extend until 2024. I recently was awarded permanent legal and physical custody of our daughter in New York (for the second time). The New York Courts investigation on Plaintiff and I have been extremely extensive, including forensic evaluations, substance abuse evaluations, and drug testing. The last time Plaintiff was in New York Family Court for a custody hearing he failed a drug and alcohol test **(EXHIBIT 3).** At this test, he tested positive for opioids, amphetamines and alcohol. Again, a critical piece of evidence I was unable to submit to indicate his substance abuse of prescription medication and alcohol.
4. The family courts in New York have a long history of dealing with Plaintiff. In this history, they have stated his behavior is "disturbing" and concerns about his "mental health". This history was extremely relevant as Plaintiff has also been in contempt of court many times, which directly speaks to the credibility in the testimony he gave to the jury. Plaintiff does not respect the court process and has a history of lying- directly to Judge's faces. Example of such is transcript as **EXHIBIT 4.**
5. The first day of trial, Judge Wong granted Plaintiff's Motion to in Limine gutting my entire defense. The critical topics I was barred from addressing were Plaintiff's prescription drug history, his history of mental illness, my order of protection against him and his history of extensive abuse of the judicial process. This includes a separate lawsuit suing my parents and I in San Francisco and a duplicate lawsuit filed for "drugging" in New York with a cause of action being negligence, which directly contradicts the cause of action in this complaint. This history is relevant to establish

the history of domestic abuse at the hands of Plaintiff and the complexity in my fear of him. The Motion in Limine granted by the court are **EXHIBIT 5**.

6. Plaintiff's accusations of my abuse have gotten increasingly more factitious as time has gone on. In his original request for a restraining order in 2018, he did not speak of any "stabbing" of a cellphone like he presented to the jury (See original order as **EXHIBIT 6**). This is because that story was made up and Plaintiff has no problem lying under oath. Each court case Plaintiff loses, the more elaborate his stories get in order to have a "win". The court should have never allowed this to happen as this information was never given in any discovery- and is made up.

7. Another tall tale that Plaintiff gave to this jury was that he obtained my personal data due to me conveniently downloading it on his computer. Plaintiff has also stated he got this data from a "criminal investigation", such as in a presentation of evidence to the forensic evaluator in New York (**EXHIBIT 7**). I had evidence at trial to impeach that Plaintiff got my data with my consent, which the court would not allow me to share. In them not doing so, I looked like a liar, which I am not.

8. Plaintiff was harassing and intimidating everyone close to me before trial. He did this in order to intimidate anyone from testifying. Plaintiff posted the depositions of my friends and family- all of whom live in New York and know nothing about the events in May of 2018- all over the internet. I asked this court for a protective order which they refused (**EXHIBIT 8)**. When I refused to give a name of a witness on my witness list before trial to protect her from online harassment from Plaintiff, Judge Wong knew this months before trial but did not order me to give the name. Plaintiff's counsel also knew this and never asked for the name. My most critical witness, who directly could speak to witnessing Plaintiff's paranoia, delusions and bizarre behavior when I was across the country, was barred from testifying. She also could have testified that Plaintiff gave her a medication I believe was Seroquel in California when I was in New York. I was left with the ability to present no witness at the trial, which was not fair.

9. Plaintiff's cruel and harassing behavior towards everyone who has helped me over the past 4 years has no limits. He went so far as to harass my family attorney in New York to the point my lawyer was in fear for the safety of his family. This history was critical for a jury to know about to understand the level of abuse I have suffered from this man. (See declaration stating such as **EXHIBIT 9).**

10. I was given one hour on the last day of trial to present my evidence and testimony. I do not think this was fair. I was unable to establish the complex, unpredictable and terrorizing history of Plaintiff's abuse towards me. This includes not being able to discuss his stalking, sexual abuse, financial coercion, isolation and threats, forcible confinement, psychological abuse and threats of violence. Without this history, I could not establish why I acted in self-defense.

11. Plaintiff is a textbook domestic abuser. I know this because I have spent years in therapy and counseling with various domestic violence organizations. Due to this, I am close to many other DV victims and have helped give support to other DV victims. I have done many DV Risk Assessments, in which Plaintiff's continued obsessive and aggressive behavior in court indicates he is still a great danger to our daughter and I. It is extremely humiliating and traumatizing for me to have to re-run the same issues over and over again in courts. It also has prevented me from working and healing. It is completely unnecessary.

12. From the first onset of Plaintiff's extremely disturbing mental episodes and refusal to get proper medical treatment, I ended our relationship and returned to New York. Although we had a few brief encounters, I very much was intent on moving on in my life and raise our daughter alone. I only came back to San Francisco with our infant daughter due to Plaintiff's financial coercion in early 2018. I have done whatever I can to stay as far away from Plaintiff as possible. He has done the opposite and continues to do whatever he can to be back in control of my life.

13. Plaintiff is extremely wealthy. To my knowledge, he has hundreds of millions of dollars in various assets, primarily from early technology investments. He knows I have no money. Plaintiff sued me to harass me and overwhelm me with litigation in an attempt to blackmail me

into letting him back into my life. Since our daughter was born, financial coercion has been his most effective and devastating form of abuse. Currently, after the latest trial, I lost my two consulting clients and am currently applying for food stamps. I am struggling to provide for our daughter. Simultaneously, Plaintiff is trying to cut the small amount of child support he pays. The judgment of $325,000 with 10% interest will bury me financially for the rest of my life. It also will keep me chained to Plaintiff and in a completely unnecessary cycle of abuse. From my research and experience with DV victims, I think the court has a long way to go in protecting victims and something has to change. I understand this is a very unique situation.

14. The longer domestic violence goes on, the smaller and smaller a victims world becomes. That is what has happened here. As I have been under attack in litigation, so has my entire support system, including those in the court system. Plaintiff has gone so as suing a family court judge in New York who first gave me permanent custody and a two year order of protection.. I can count at least 13 different judges who have been involved in endless complaints and appeals- all of which have included accusations of drugging. In constantly reliving my trauma, I have a hard time leaving the house. For four years, I continue to drown in Plaintiff's abuse. I am aware I am not a lawyer, but I also am not a superhero. I have done my very best in this court proceeding but without the ability to afford legal counsel I have failed. I also was unable to represent myself in trial effectively due to my trauma. I lost the second Plaintiff filed the lawsuit, and that is why he prolonged trial for as long as possible.

15. During trial, I had a panic attack. I told the judge I could not properly represent myself due to my trauma and own mental issues. I did myself to stand up to Plaintiff's abuse, including him submitting forged texts, undermining my abuse, and lying in his testimony, but in doing so I was constantly reprimanded by the court and undermined by Plaintiff's lawyer. After the judge said he would sanction me, I gave up and stopped objecting. Plaintiff came to court for ½ of a day and testified for a short period. He was calm and credible. On the other hand, I appeared unstable, aggressive, defiant, and inconsistent. I was given 1 hour to present my case.

16. Currently, although I support our daughter knowing all of her family, I am too scared to even have her do visits with Plaintiff's mother due to the financial backlash. Any thread of

connection to my life he gets, I expose myself to liability in litigation costs. I am worried about our daughter's future in any involvement with her father for the same reasons.

I declare under penalty of perjury under the laws of the State of California and the State of New York that the foregoing is true and correct.

Signed this 21st of March, 2022, in Chappaqua, New York.

By: _____
TARA WALSH